

| LAW LITIGATION FINANCE |

CASHING IN ON CASES

Litigation financing is fast gaining traction in India, with start-ups, law firms, companies and investors betting big on the emerging segment. But is it really a win-win formula for everyone?

BY **ASHISH RUKHAIYAR**

▶ Defined as third-party funding availed to pursue legal matters, litigation financing is provided by financiers to cover legal costs, mostly of commercial matters. In return, they take a share from any claim amount awarded to them

▶ Start-ups, such as FIGHTRIGHT, LegalPay, LitiCap, etc. operate in the litigation finance space in India, while there are many players such as Parabellum Capital, Bentham Capital, Burford Capital, etc., which operate globally

▶ The specialised start-ups operating in India have put in place AI-backed data analytics tools to identify cases and fund them. Individuals, companies, lawyers and law firms can approach such ventures, which do their own due diligence before providing the funding